

PSUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

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YGNACIO HERRERA and MARIA TERRERO,
Plaintiffs,

-v-

COMPLAINT
Compt.Claim#2016PI032819

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK CITY POLICE
OFFICE RANDY BAUTISTA and NEW YORK
CITY POLICE OFFICER "JOHN" FIRST TRUE
NAME UNKNOWN, CONESTO ,
Defendants.

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The Plaintiff's thru their counsel, The Law Office of Yelena Sharova, P.C. complaining of the
Defendants states as follows:

1. At all times hereinafter mentioned the Plaintiffs, Ygnacio Herrera, hereinafter "Herrera" / Plaintiff" and Maria Terrero , hereinafter "Terrero/Plaintiff" reside in the State of New York, City of New York, County of the Bronx.
2. At all times hereinafter mentioned , the Defendant City of New York, hereinafter "CNY", is a political entity/ municipality that governs the five boroughs that encompass the City of New York, inclusive of the Bronx.
3. That the Defendant New York City Police Department, hereinafter is an agency of the City of New York.
4. That Defendant Randy Bautista, hereinafter "Bautista" is a NYPD Police Officer.
5. "Bautista" is assigned to the NYPD 46th Precinct.
6. That Defendant 'John", first true name unknown -Conesto, hereinafter "Conesto" is a NYPD Officer .
7. That Conesto is assigned to the NYPD 46th Precinct.
8. That at all times hereinafter the Plaintiff Herrera was assaulted and arrested on August 23, 2016, hereinafter "date of incident".
9. That Herrera, did file a Notice of Claim with the Comptroller of the City of New York on November 18, 2016 as to the date of incident of August 23, 2016.
10. That the filing of the Notice of Claim was done within 90 days of the date of incident.
11. That on May 11, 2017, a 50-H hearing was held by counsel authorized to perform said 50-H hearing for the Comptroller of the City of New York and that said hearing was completed on May 11, 2017.
12. That this law suit is being brought within 1 year and 90 days of the date of incident- August 23, 2016.
13. That all statutory requirements have been completed by the Plaintiff in the time frames allocated.

AS AND FOR A FIRST CAUSE OF ACTION

14. Plaintiffs repeat and reiterate each allegation contained in Plaintiffs' complaint decretal paragraphs numbered "1" thru "13" inclusive.
15. That on August 23, 2016, at approximately 8:15pm the individual Defendants, Bautista and Conesto were, upon information on duty in a radio motor patrol car.
16. That the individual Defendants work at the 46th Precinct.
17. That the Plaintiffs were involved in an altercation with the owner/employee of Fordham Fruit & Vegetable store located at 2450 Creston Avenue, Bronx, NY, hereinafter "Store"
18. That as a result the Plaintiff Herrera did call for Police assistance thru 911.
19. That the individual Defendants did appear in their patrol car.
20. That the Plaintiff Herrera did attempt to explain the altercation to the individual Defendants.
21. That the individual Defendants refused to hear the details from the Plaintiff Herrera.
22. That individual Defendants went inside the Store and came out and did arrest the Plaintiff Herrera on the alleged grounds of shop listing.
23. That either Bautista or Conesto or both, did grab the Plaintiff Herrera spun him around and proceeded to handcuff Herrera.
24. That either Bautista or Conesto or both, did "double click" the handcuffs on Herrera injuring his wrists.
25. That either Bautista or Conesto or both, did lift Herrera's handcuffed arms in a "wing movement", lifting his arms way up, that he was on his toes.
26. That Herrera was brought to the 46th Precinct and arrested.
27. That Herrera did receive a DAT after waiting several hours.
28. That said DAT was returnable in the Bronx Criminal Court on November 11, 2016.
29. That the Plaintiffs did appear to the Criminal Court, DAT Part on November 11, 2016 and was advised that the case had been dismissed.
30. That the case was dismissed by the District Attorney's Office as they declined prosecution against Herrera.
31. As a result Herrera has sustained serious injuries to his person thru the Assault, Negligence, Malicious actions, Purposeful physical acts knowing it would cause injury to Herrera, Intentional action of negligence, Dangerous gross negligence that the Defendants knew or should have known would result in injury to Herrera, Lack of due care, Violation of NYPD Rules and Regulations and Patrol Guide, Failure in preventing physical harm to Herrera, Conspiring against Herrera in injuring him, all leading to permanent and debilitating injuries to Herrera.
32. As a result, the damages for the injuries, caused by the Defendants to the Plaintiffs, is in excess of the monetary jurisdictions of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

33. Plaintiffs repeat and reiterate each allegation contained in Plaintiffs' complaint decretal paragraphs numbered "14" thru "32" inclusive.
34. That the Defendants did falsely arrest Herrera.
35. That the Defendants knew or should have known that Herrera committed no crime.

36. That because of the actions of the Defendants, the Plaintiffs have been damaged in an amount in excess of the monetary jurisdictions of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

37. Plaintiffs repeat and reiterate each and every allegation contained in Plaintiffs' decretal paragraph numbered "33" thru "36" inclusive.
37. That as a result of the actions by the Defendants, herein pre-described, Herrera was imprisoned , Falsely, by the Defendants.
38. That as a result of the false imprisonment of Herrera by the Defendants, the Plaintiffs have been damaged in an amount in excess of the monetary jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

39. Plaintiffs repeat and reiterate each and every allegation contained in Plaintiffs' decretal paragraph numbered "37" thru "38" inclusive.
40. That as a result of the actions of the Defendants actions, Herrera was falsely prosecuted by said Defendants.
41. That as a result, the Plaintiffs have been damaged in an amount in excess of the monetary jurisdictions of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

42. Plaintiffs repeat and reiterate each and every allegation contained in decretal paragraphs numbered "39" thru "41", inclusive.
43. That as a result of the Defendants actions, the Defendants did violate the rights and liberties afforded the Plaintiffs under 42 U.S.C. 1983 and the violations of the rights and liberties provided under the NYS Constitution.
44. That as a result of the Defendants actions the Plaintiff have been damaged in an amount in excess of the monetary jurisdictions of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION

45. Plaintiffs repeat and reiterate each and every allegation contained in decretal paragraphs numbered "42" thru "44", inclusive.
46. That the Defendants City of New York and the NYPD, were negligent in hiring, supervising, training, overseeing, investigating , failing to discipline and otherwise allowing the individual Defendants to remain as Police Officers.
47. That the City of New York and the NYPD are the employers and agents of the individual Defendants.

48. That they were grossly negligent/negligent in allowing the individual Defendants to perform as Police Officers.
49. That the City of New York and the NYPD knew or should have known of the deficiencies and vicious propensities of the individual Defendants in operation of their duties of being Police Officers.
50. That as a result of the Defendants actions or lack of action, the Plaintiffs have been damaged in an amount in excess of all monetary jurisdictions of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

51. Plaintiffs repeat and reiterate each and every allegation contained in decretal paragraphs numbered "45 thru "50", inclusive.
52. That Ygnacio Herrera and Maria Terrero are husband and wife.
53. That as a result of the afore stated actions of the Defendants the Plaintiff Maria Terrero has suffered the loss of care and comfort and society of Herrera as well as loss of consortium .
53. That as a result Terrero & Herrera both have been damaged in an amount in excess of all monetary jurisdictions of all lower courts.

AS AND FOR A EIGHTH CAUSE OF ACTION

54. Plaintiffs repeat and reiterate each and every allegation contained in decretal paragraphs numbered "51" thru "53", inclusive.
55. That members of the NYPD , upon information & belief from the 46th Precinct, the Precinct that the Plaintiff "Herrera" was processed for arrest and the Precinct that the Defendant Officers work out of, have been systematically harassing the Plaintiff "Herrera".
56. That unknown NYPD Police have visited his home searching for the Plaintiff "Herrera".
57. That a Detective working at the 46th Precinct did call the Plaintiff "Herrera" to find out "why the Plaintiff did complain against the Defendant Officers with Internal Affairs".
58. That as a result the NYPD of the 46th Precinct have been committing harassment against the Plaintiff Herrera.
59. That as a result the Plaintiff Herrera has been damaged in an amount in excess of all monetary jurisdictions of all other courts.

WHEREFORE, it is respectfully requested that this Court grant the Plaintiffs a judgment for the FIRST Cause of Action; the SECOND Cause of Action; the THIRD Cause of Action; the FOURTH Cause of Action; the FIFTH Cause of Action; the SIXTH Cause of Action; the SEVENTH Cause of Action and the EIGHTH Cause of Action, with costs, interest, fees and all other issues as this Court deems just and proper.

Dated: October 19, 2017
Brooklyn, NY

Yours, etc.


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